

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: May 18, 2015
Courtroom Deputy: Cathy Pearson
FTR Technician: Kathy Terasaki

Civil Action No. **12-cv-02735-RPM**

Counsel:

PAUL BAUMAN,

David Lane
Michael Fairhurst

Plaintiff,

v.

**MIKE ENSMINGER,
STAN BISHOP,
JOSH WEATHERILL,
NICK HARTBAUER,
JESSE BAKER,**

Leslie Schluter
David Werber

Defendants.

COURTROOM MINUTES

JURY TRIAL (DAY 1)

8:37 a.m. Court in session.

Counsel advise the Court that they have agreed to dismiss Defendant Baker. Mr. Lane states that a written motion will be filed. The Court will grant the motion when it is filed.

8:39 a.m. Prospective jurors enter the courtroom.
Court calls case.

8:47 a.m. Voir dire oath given.

Introductions of people seated at counsel table.

Initial eighteen jurors drawn from jury wheel.

9:00 a.m. Voir dire by Court commences.

10:30 a.m. Bench conference - counsel pass jury panel for cause and request no additional voir dire be done by the Court.

10:35 a.m. Court outlines trial stages and outlines protocol for jurors during trial.

Challenges for Cause:

- 1) 100263630
- 2) 100258592
- 3) 100275704

Peremptory challenges by Plaintiff:

- 1) 100253404
- 2) 100267704
- 3) 100277857

Peremptory challenges by Defendant:

- 1) 100266564
- 2) 100272277
- 3) 100255399

10:45 a.m. Jury excused from the courtroom.

10:45 a.m. Court in Recess.

11:08 a.m. Court in Session.

11:10 a.m. Jury enters.

11:12 a.m. Jury sworn to try case:

- | | |
|---------------|---------------|
| 1) 100248727 | 2) 100280296 |
| 3) 100266269 | 4) 100252781 |
| 5) 100259132 | 6) 100267042 |
| 7) 100274545 | 8) 100263630 |
| 9) 100276355 | 10) 100258352 |
| 11) 100263589 | 12) 100262256 |

11:13 a.m. Plaintiff's opening statements by Mr. Lane.

11:48 a.m. Court in recess.

12:58 p.m. Court in session. Mr. Weber is not present.

Plaintiff's counsel orally moves to preclude any medical experts who did not personally evaluate Plaintiff, in accordance with the Court's Order Excluding Opinions entered on May 15, 2015.

ORDERED: The Court's Order Excluding Opinions (Doc. 80) stands, and the opinions of doctors who did not examine Mr. Bauman will be excluded.

1:03 p.m. Jury enters.
Defendants' opening statements by Ms. Schluter.

1:55 p.m. Plaintiff's witness, Paul Bauman, sworn.
Direct examination by Mr. Lane.
Exhibits received: Plaintiff's Exhibits 14, 16, 17, 21, 24, 28, 29, 30, 31.

2:55 p.m. Court in recess.

3:10 p.m. Court in session.
Jury enters.

3:11 p.m. Continued direct examination of Paul Bauman by Mr. Lane.
Exhibits received: Plaintiff's Exhibit 46 and 54.

3:20 p.m. Cross-examination of Paul Bauman by Ms. Schluter.
Exhibit received: Defendant's Exhibit Q, pages 564 through 574 only.
Witness presented with a transcript of a deposition dated May 1, 2013.

4:30 p.m. Jury excused until 9:00 a.m. on May 19, 2015.

4:32 p.m. Court in recess.

Trial continued. Total time: 6 hours and 29 minutes.